

Motion for judgment on the pleadings

Appearance is required for hearing on trustee's motion for judgment on the pleadings.

Note: the tentative ruling advisement in the notice of hearing does not apply to hearings on the court's probate calendar. See Local Rule 80.1.4. There is no requirement to request oral argument in order to appear at or be heard at the hearing.

Because this matter was scheduled on the probate calendar, no tentative ruling is available. Local Rule 80.1.4.

17. S-PR-0013833 In Re the Yellow Dog Trust

Calendar notes are not yet available for this matter. Please check back for updated notes.

18. S-PR-0013842 In Re the Estate of Kasparian, Theodore

Missing notice of hearing for petition to administer estate. Missing service of notice of hearing. Missing proof of publication of notice of hearing.

Missing required allegations at ¶¶ 5a(3)-(4) (RDP); (7)-(8) (issue of predeceased child(ren)); ¶ 6 (next relations where no spouse or child(ren)); and ¶ 7 (if applicable). Clarification is needed: ¶ 8 identifies petitioner as a sibling contrary to ¶ 6 (see ¶ 6b).

Missing proposed administrator's relationship to decedent (¶ 3g(2)(c)).

Missing residence of proposed administrator (¶ 3h).

Missing allegations concerning nature of decedent's estate (¶ 3d).

Note: missing signed Duties form (DE-147). Clerk cannot issue letters until signed Duties form is filed. C.R.C. 7.150.

19. S-PR-0013872 In Re the Estate of Wallace, William

Petition to administer estate is recommended for approval as prayed.

20. S-PR-0014017 In Re the Estate of Selby, Jay Reed

Appearance is required for hearing on petition to administer estate.

Missing proof of publication of notice of hearing for petition to administer estate.

Note: a purported will of decedent has been lodged with the court. No one has petitioned to probate the will.

Note: missing signed Duties form (DE-147). Clerk cannot issue letters without signed duties form. Proposed personal representative did not petition for relief, has not appeared, and apparently has not consented to serve as personal representative.

21. S-PR-0014019 In Re the Estate of Fairbairn, Colleen

Spousal property petition is recommended for approval in part. The request to modify the prior deed to the property is not relief that can be granted in this proceeding.

22. S-PR-0014021 In Re the Judy Malavazos Trust

It is recommend the petition to determine trust property be denied.

Transfer of real property to a trust or creation of a trust for real property requires a writing. See Prob.C. § 15200(a)–(b); see also *Estate of Heggstad* (1993) 16 Cal.App.4th 943; *Ukkestad v. RBS Asset Finance Inc.* (2015) 235 Cal.App.4th 156. Petitioner offers no writing by decedent settlor establishing describing the property; because it is not described within the trust, the requested relief falls outside the reach of *Heggstad*.

Nor is relief available under *Ukkestad*. In *Ukkestad*, the court determined that an all-real-property funding clause can satisfy the statute of frauds to create a trust in real property not identified in the writing but which can be defined by extrinsic evidence such as real property records. *Ukkestad, supra*, 235 Cal.App.4th at 162–163. However, the trust provision in *Ukkestad* "assigned the ownership of all of [settlor's] real property to the trustees of the Trust *effective immediately*." *Id.* at 159 (emphasis added). *Ukkestad* did not involve after-acquired property and so does not hold that property acquired contrary to the trust after its execution is or automatically becomes trust property. Settlor acquired the subject property long after the trust was executed; no public records or other evidence at the time the trust was executed could have supplied an identification of the property as a trust asset.

Relief also cannot be granted under the pourover will: the will has no effect until probated and, when probated, requires estate administration. "In the absence of any transfer to [a] trust *prior to* [decedent's] death," assets become part of the decedent's estate despite will language expressing decedent's desire that assets be held in trust. *Placencia v. Strazicich* (2019) 42 Cal.App.5th 730, 735 & 743-744 (emphasis added). "It [is] error for the court to award [such property] directly to [a] trust in the absence of a probate proceeding." *Id.*, citing *Estate of Hart* (1957) 151 Cal.App.2d 271, 280–281. See also Prob.C. § 7001. "[A] probate court ha[s] no power to consider the legality of a will until it [is] regularly brought before it by a petition for its probate." *Estate of Burnett* (1935) 6 Cal.App.2d 116, 123.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.